

慶應義塾大学 法学部 英語 自習プリント

英語が得意な人のための「私大難関本番レベル」— 市民的不服従の正当化を
読み解く

2026 年 5 月 26 日

高校 3 年～既卒 (難関私大文系志望)

英語 (慶應 法学部・本番水準)

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第1章 (例題 — 慶應 法学部レベル・5 分)

慶應法は 80 分・大問 4-5 題。本問は長文 1 題で 25 分相当 (法学部の中核ブロック)。

【例題】(慶應義塾大学 法学部 入試 典型形式・改題)

Read the passage and answer the questions that follow.

In a tolerably just society, the citizen who refuses to obey the law owes the rest of us an explanation. The reason is straightforward: when each of us submits to legal authority, we accept a certain reduction of our individual judgment in return for the protection that a system of common rules provides. Someone who declines that bargain on a particular occasion is, in effect, asking to keep the protection while refusing the constraint. Such a request is not, on the face of it, obviously reasonable; the burden of justification falls on the one who would withdraw their assent.

Yet political traditions across the modern world have, almost without exception, recognized that there are circumstances in which precisely this refusal is the right thing to do. The American writer Henry David Thoreau coined what became the modern term in 1849, after spending a night in jail rather than pay a tax he believed supported slavery and an unjust war. A century later, Mahatma Gandhi made the deliberate violation of unjust laws — accompanied by the willing acceptance of legal consequences — the central tactic of an independence movement. Martin Luther King Jr., writing from a jail cell in Birmingham, defended the same practice against the charge that the orderly use of the courts ought to suffice. The line of argument these figures opened has been refined by later legal philosophers, including John Rawls, into a recognizable doctrine of civil disobedience.

The doctrine identifies several conditions that distinguish principled disobedience from ordinary lawbreaking. First, the violated law must concern a clear injustice rather than a mere disagreement of policy; the disobedient is not entitled to ignore traffic regulations simply because she finds them annoying. Second, ordinary legal and political channels must have been tried and found inadequate; if a constitutional amendment or a peaceful election could solve the problem, those routes are owed priority. Third, the disobedience must be public rather than clandestine, undertaken openly in the recognition that it appeals to the moral conscience of the wider community. Fourth, the disobedient must be willing to accept

the legal penalty for her action, thereby acknowledging the general authority of the legal order even while refusing one of its particular demands.

These conditions are not trivial. They serve to distinguish the conscientious refuser from the ordinary criminal, who shares neither the publicity nor the willingness to be punished, and from the revolutionary, who rejects the authority of the legal order as a whole. The civil disobedient occupies a narrow position between these poles: she insists that the legal order is, on the whole, legitimate, and addresses her appeal precisely to its capacity for self-correction.

Critics have argued that this account is too restrictive — that real movements of resistance, from anti-colonial struggles to climate protest, have often departed from one or more of the conditions while still serving justifiable ends. Some have noted that the requirement to "accept the penalty" is harder to defend in regimes whose penalties are themselves unjust; what should the activist do when the consequences of her arrest include not merely a fine but indefinite detention or worse? Others have asked whether the demand for publicity, sensible in an age of newspapers, fits a digital landscape in which clandestine resistance — leaking documents, disrupting infrastructure — may be the only means available to the relatively powerless.

A defender of the standard account need not deny that these are real complications. She may instead argue that the conditions identify a paradigm case — the case for which the doctrine was originally designed — and that more difficult cases, in which one or more conditions cannot be met, require additional argument rather than the abandonment of the framework altogether. The activist who breaks a law in secret, without willingness to be punished, may sometimes be acting justifiably; but she is not, by the strict definition, engaging in civil disobedience, and the question of whether her action is permissible has to be answered on different grounds.

What is at stake in the dispute, perhaps, is not so much the precise definition as the deeper question of how a legal order can simultaneously demand obedience and acknowledge that its commands may, on occasion, be wrong. The doctrine of civil disobedience is one of the principal ways modern political thought has tried to keep both demands alive in the same moral space. It is a discipline both for the citizen — who must show that her refusal is principled rather than merely convenient — and for the state, which must recognize that the obedience it requires is not unconditional.

Q1. According to the first paragraph, why does the citizen who refuses to obey the law owe an explanation to others?

- ① Because the law always knows best.
- ② Because submission to common rules in exchange for protection forms a bargain, and unilaterally refusing that bargain on a particular occasion places the burden of justification on the refuser.
- ③ Because refusing to obey is always criminal.
- ④ Because no one has the right to question legal authority.

Q2. Which of the following figures is NOT mentioned in the second paragraph as a historical contributor to the modern doctrine of civil disobedience?

- ① Henry David Thoreau.
- ② Mahatma Gandhi.
- ③ Martin Luther King Jr.
- ④ Aristotle.

Q3. According to the third paragraph, what is the difference between principled civil disobedience and ordinary lawbreaking?

- ① Principled disobedience targets a clear injustice rather than a mere policy disagreement, exhausts ordinary channels, is public, and accepts the legal penalty.
- ② Principled disobedience is always conducted in secret to avoid arrest.
- ③ Principled disobedience aims to overthrow the entire legal order.
- ④ Principled disobedience requires no justification at all.

Q4. Why does the author claim that the civil disobedient occupies a "narrow position" between the ordinary criminal and the revolutionary?

- ① Because she is more violent than either.
- ② Because she insists that the legal order is, on the whole, legitimate, and addresses her appeal precisely to its capacity for self-correction.
- ③ Because she has no moral commitments at all.
- ④ Because she is legally indistinguishable from a thief.

Q5. Why does the author present the criticisms regarding "indefinite detention" and digital "clandestine resistance"?

- ① To argue that civil disobedience has been thoroughly refuted.
- ② To illustrate hard cases that complicate the standard doctrine without necessarily refuting it, and that may require additional argument rather than abandonment of the framework.
- ③ To recommend that all activists immediately leak classified documents.
- ④ To deny that authoritarian regimes exist.

Q6. Which of the following best summarizes the author's overall conclusion?

- ① The doctrine of civil disobedience is obsolete and should be discarded.
- ② The doctrine is one of the principal ways modern political thought tries to keep both demands — obedience to law and acknowledgment that law may be wrong — alive in the same moral space; it disciplines both citizen and state.
- ③ Citizens should obey every law unconditionally regardless of justice.
- ④ The state should always accept any act of disobedience without penalty.

市民的不服従 — 「犯罪」と「革命」の狭間に立つ

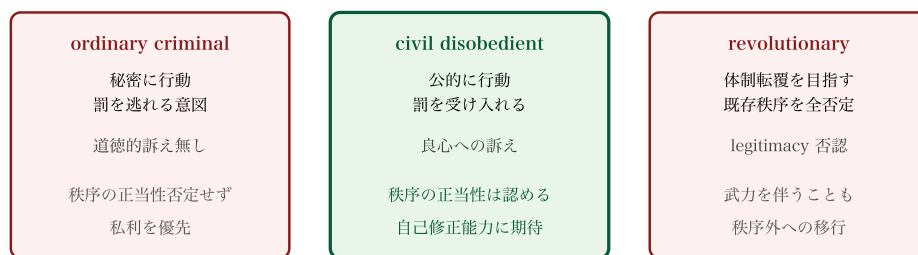


図 1-1 三項対比 — civil disobedient は秩序の正当性を認めつつ特定法に異議

第2章 (解法の全体方針と武器整理・3 分)

法学エッセイは「前提 → 歴史 → 条件提示 → 三項対比 → 批判 → 反論 → 政治哲学的含意」の 7 段論法。

【ジャンル分析】

本文は典型的な (A) political philosophy of law essay。著者は 7 段かけて、civil disobedience の概念を Thoreau/Gandhi/King の系譜から John Rawls まで体系化し、批判と反論を経て最終的に「法秩序の自己修正能力を担保する制度」として位置づける。

【本問で必要な 4 つの武器】

- ① (A) 権利の bargain 構造 — 第 1 段の social contract 的論理
- ② (B) 固有名詞の系譜 (Thoreau → Gandhi → King → Rawls)
- ③ (C) 法哲学用語の文脈推測 — "conscientious refuser" "clandestine" "paradigm case" "legitimacy"
- ④ (D) 著者の立場 = 標準説の擁護者 (修正に開かれた)と読む

【各設問の戦略】

- Q1 (前提・bargain) → 第 1 段 "bargain ... burden of justification"
- Q2 (NOT 設問・固有名詞) → 第 2 段に Aristotle が無いことを確認
- Q3 (4 条件) → 第 3 段の First/Second/Third/Fourth 列挙
- Q4 (三項対比) → 第 4 段 "narrow position between these poles"
- Q5 (批判の引用目的) → 第 6 段 "paradigm case ... require additional argument"
- Q6 (全体結論) → 最終段 "discipline both for the citizen and for the state"

第3章 (Q1 — 義務の bargain 構造・3 分)

法学 Q1 は「義務と権利の交換」を聞く。第 1 段で即決。

【設問】 Why does the citizen who refuses to obey the law owe an explanation?

★ Step 1: 第 1 段の bargain 論理

"when each of us submits to legal authority, we accept (A) a certain reduction of our individual judgment in return for the protection that a system of common rules provides. Someone who declines that bargain on a particular occasion is, in effect, asking to keep the protection while refusing the constraint."

結論: "the burden of justification falls on the one who would withdraw their assent."

★ Step 2: paraphrase 対応

本文 "submits ... in return for the protection ... bargain ... burden of justification"

選択肢② "submission to common rules in exchange for protection forms a bargain, and unilaterally refusing that bargain ... places the burden of justification on the refuser"

→ "bargain" 直接一致、"burden of justification" 直接一致。

★ Step 3: 誤答分析

- ・ ① "the law always knows best" → (A) 本文に法絶対主義の主張なし。
- ・ ③ "refusing to obey is always criminal" → 本文と (B) 逆方向。 著者は principled disobedience を擁護。
- ・ ④ "no one has the right to question legal authority" → 本文と (C) 逆。

【正解】 ② Because submission to common rules in exchange for protection forms a bargain, and unilaterally refusing that bargain on a particular occasion places the burden of justification on the refuser.

第4章 (Q2 — NOT 設問・固有名詞・5 分)

法学頻出 NOT 設問。第 2 段の人物列挙から不在の人物を選ぶ。

【設問】 Which of the following figures is NOT mentioned in the second paragraph?

★ Step 1: 第 2 段の人物を列挙

- "Henry David Thoreau coined what became the modern term in 1849"
- "Mahatma Gandhi made the deliberate violation of unjust laws ... the central tactic"
- "Martin Luther King Jr., writing from a jail cell in Birmingham"
- "later legal philosophers, including John Rawls"

★ Step 2: 選択肢と照合

- ① Thoreau 下線A : ○
- ② Gandhi 下線A : ○
- ③ King 下線A : ○
- ④ Aristotle 下線B : ×

★ Step 3: なぜ Aristotle が罠

Aristotle は古代ギリシャの政治哲学者で、市民的不服従の現代的概念とは別系統。本文は 19-20 世紀の流れ (Thoreau 1849 → Gandhi 20 世紀前半 → King 1960s → Rawls 1971) を辿る。

【正解】 ④ Aristotle.

💡 法学 NOT 設問の罠: 「政治哲学者」というカテゴリで一見もっともらしい古代の名前 (Plato, Aristotle, Cicero) を入れることが多い。本文の時代区分を必ず確認。

第5章 (Q3 + Q4 — 4 条件 + 三項対比・10 分)

「法学的精緻化」と「概念的 position 取り」を続けて聞く。Rawls 系統の標準的論理。

【Q3 設問】 What is the difference between principled civil disobedience and ordinary lawbreaking?

★ 該当段 (第 3 段) の 4 条件

- First: "the violated law must concern (A) a clear injustice rather than a mere disagreement of policy"
- Second: "(B) ordinary legal and political channels must have been tried and found inadequate"
- Third: "the disobedience must be (C) public rather than clandestine"
- Fourth: "the disobedient must be (D) willing to accept the legal penalty"

★ Q3 の paraphrase 対応

本文の 4 条件 → 選択肢① "targets a clear injustice rather than a mere policy disagreement, exhausts ordinary channels, is public, and accepts the legal penalty"
→ 4 条件すべてに対応。

【Q3 正解】 ① Principled disobedience targets a clear injustice rather than a mere policy disagreement, exhausts ordinary channels, is public, and accepts the legal penalty.

★ Q3 誤答の罠

- ② "always conducted in secret" → 第 3 条件と (A) 逆方向。"public rather than clandestine" と明示。
- ③ "overthrow the entire legal order" → 革命と混同。第 4 段で明確に区別される。
- ④ "requires no justification" → 第 1 段の bargain 論理と矛盾。

【Q4 設問】 Why does the civil disobedient occupy a "narrow position" between the ordinary criminal and the revolutionary?

★ 該当段 (第 4 段) の三項対比

"These conditions ... serve to distinguish the conscientious refuser from the ordinary

criminal, who shares neither the publicity nor the willingness to be punished, and from the revolutionary, who rejects the authority of the legal order as a whole."

"The civil disobedient occupies a narrow position between these poles: (A) she insists that the legal order is, on the whole, legitimate, and addresses her appeal precisely to its (B) capacity for self-correction."

★ Q4 の paraphrase 対応

本文 "insists that the legal order is ... legitimate ... capacity for self-correction"

選択肢② "insists that the legal order is, on the whole, legitimate, and addresses her appeal precisely to its capacity for self-correction"

→ 直接対応。

【Q4 正解】② Because she insists that the legal order is, on the whole, legitimate, and addresses her appeal precisely to its capacity for self-correction.

★ 重要観察 — Q3 と Q4 の連動

Q3 = 4 条件の列挙 (内部構造) → Q4 = 周辺概念との区別 (外部位置)。(A) 「定義 + 位置取り」は概念分析の標準的論理。法学エッセイで頻出。

市民的不服従の 4 条件 — Rawls 系標準モデル

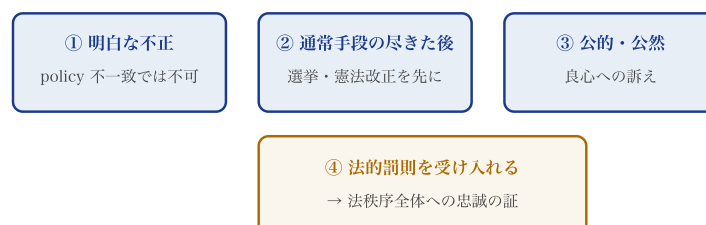


図 5-1 Rawls 系の 4 条件 — ④罰の受容が「秩序の正当性は認める」ことの担保

第6章 (Q5 — 批判段落の目的・5 分)

「批判の引用 + 反論の準備」の意図を読む。

【設問】 Why does the author present the criticisms regarding "indefinite detention" and digital "clandestine resistance"?

★ Step 1: 第 5 段の批判の内容

- ・ "requirement to 'accept the penalty' is harder to defend in regimes whose penalties are themselves unjust" → 罰自体が不正な場合 (例: 無期拘束)
- ・ "demand for publicity ... fits a digital landscape in which clandestine resistance ... may be the only means available" → 公然性の要求がデジタル時代に合うか

★ Step 2: 第 6 段の著者の応答

"A defender of the standard account need not deny that these are real complications. She may instead argue that (A) the conditions identify a paradigm case — the case for which the doctrine was originally designed — and that more difficult cases ... require additional argument rather than the abandonment of the framework altogether."

→ 批判は「枠組み自体の放棄」を意味しない、「追加の議論」が必要なだけ。

★ Step 3: paraphrase 対応

本文 "real complications ... paradigm case ... require additional argument rather than the abandonment of the framework"

選択肢② "illustrate hard cases that complicate the standard doctrine without necessarily refuting it, and that may require additional argument rather than abandonment of the framework"

→ "paradigm case" → "standard doctrine"、"abandonment of the framework" 直接一致。

★ Step 4: 誤答分析

- ・ ① "thoroughly refuted" → 著者は(A) 擁護に回っている。
- ・ ③ "all activists ... leak classified documents" → (B) 行動指針の誤読。
- ・ ④ "deny that authoritarian regimes exist" → (C) 逆方向。

【正解】 ② To illustrate hard cases that complicate the standard doctrine without necessarily refuting it, and that may require additional argument rather than abandonment

of the framework.

第7章 (Q6 — Main Idea 設問 + 関連話題・10 分)

法学エッセイの結論は「制度の双方向的規律」型。

【設問】 Which of the following best summarizes the author's overall conclusion?

★ Step 1: 最終段を精読

"What is at stake in the dispute, perhaps, is not so much the precise definition as (A) the deeper question of how a legal order can simultaneously demand obedience and acknowledge that its commands may, on occasion, be wrong."

"The doctrine of civil disobedience is one of the principal ways modern political thought has tried to (B) keep both demands alive in the same moral space. It is (C) a discipline both for the citizen — who must show that her refusal is principled rather than merely convenient — and for the state, which must recognize that the obedience it requires is not unconditional."

→ 主旨 3 要素:

- ① 「服従要求」と「法の誤りの認識」を両立する装置
- ② 市民への規律 (恣意的不服従を防ぐ 4 条件)
- ③ 国家への規律 (無条件服従を要求できない)

★ Step 2: 選択肢②との対応

"The doctrine is one of the principal ways modern political thought tries to keep both demands — obedience to law and acknowledgment that law may be wrong — alive in the same moral space; it disciplines both citizen and state."

→ 3 要素すべて含む。

【Q6 正解】 ② The doctrine is one of the principal ways modern political thought tries to keep both demands — obedience to law and acknowledgment that law may be wrong — alive in the same moral space; it disciplines both citizen and state.

★ 関連話題 — 慶應法進学後への接続

- ・ (A) Henry David Thoreau "Civil Disobedience" (1849) — 現代用語の起源
- ・ (B) Mahatma Gandhi の satyagraha 運動 (1906-1947) — 戦術としての制度化
- ・ (C) Martin Luther King Jr. "Letter from Birmingham Jail" (1963) — 神学的正当化

- ・ (D) John Rawls "A Theory of Justice" (1971) Chapter 6 — 4 条件の体系化
- ・ (A) Hannah Arendt "Civil Disobedience" (1970) — 集団的少数派の権利論
- ・ 現代日本: 反原発デモ / 沖縄基地反対運動 / 安保法制反対デモ

★ 大学進学後への接続

1 年次: 法学入門・憲法・法哲学

2-3 年次: 法哲学ゼミ / 憲法ゼミ / 政治学ゼミ

卒論候補: 日本における civil disobedience の judicial 評価 / 環境運動と civil disobedience / Snowden 事件の法哲学的分析

第8章 (法学部英語 攻略のコツ・5 分)

慶應法長文を完答するための 5 つの技術。

【コツ 1】 7 段論法 (前提 → 歴史 → 条件 → 三項対比 → 批判 → 反論 → 含意) を予測

法学エッセイは「概念分析」が中心。各段で「定義 / 例示 / 区別 / 批判 / 反論 / 結論」のどれかを担っている。

【コツ 2】 政治哲学者の固有名詞リスト

- ・ (A) Thoreau / Gandhi / King — 市民的不服従の実践者系譜
- ・ (B) Rawls / Dworkin / Habermas — 法哲学・政治哲学の現代理論
- ・ (C) Arendt / Berlin / Sandel — 政治思想の現代論者
- ・ (D) Hobbes / Locke / Rousseau / Kant — 社会契約論の古典

【コツ 3】 法学用語の文脈推測

bargain / submission / legitimacy / self-correction / conscientious / clandestine / paradigm case / framework / unconditional / discipline

【コツ 4】 誤答パターン 4 種 (法学版)

- ・ (A) 絶対主義: always knows best / no right to question / unconditional — 法哲学は条件付き議論
- ・ (B) 極端化: completely discarded / always in secret / obey every law — 中道的結論が王道
- ・ (C) 論点ずれ: 国際関係・経済・自然科学 — 法哲学エッセイの範囲外
- ・ (D) 逆方向: 著者が擁護する立場を否定したと取る

【コツ 5】 時間配分 (慶應法 80 分)

大問構成が多い (4-5 題) ので、長文には (A) 25 分 を上限。配分注意。

【最後にひとこと】

慶應法の英語は (A) 語学試験 であると同時に (B) 法哲学リテラシー試験。本問の civil disobedience 論は、入学後に学ぶ憲法・法哲学の核心テーマ。

第9章 (類題チャレンジ・10 分) [10 点]

本講義の手法を応用する 5 問。

(類題 1) 本文中の "conscientious refuser" の意味として最も近いものを選びなさい。

- ① 良心的拒否者 — 道徳的信念に基づき法に従わない者
- ② 公務員試験の不合格者
- ③ 良識ある教師
- ④ 革命的活動家

(類題 2) 本文の "clandestine" の意味として最も近いものを選びなさい。

- ① 秘密の・隠れて行う
- ② 公的な・公然と行う
- ③ 暴力的な
- ④ 合法的な

(類題 3) 本文中で John Rawls が引用される役割として最も適切なものを選びなさい。

- ① 市民的不服従を体系化した現代法哲学者として
- ② Thoreau の同時代の友人として
- ③ 現代インド独立運動の指導者として
- ④ Birmingham 裁判の被告として

(類題 4) 本文の "capacity for self-correction" が示唆するものとして最も適切なものを選びなさい。

- ① 法秩序自身が誤りを修正できる能力
- ② 個人が罪を悔い改める能力
- ③ 経済の自動調整機能
- ④ AI の学習能力

(類題 5) 本文の論理構成として最も近いものを選びなさい。

- ① 前提 (bargain) → 歴史的系譜 → 4 条件提示 → 三項対比 → 批判の登場 → 反論 (paradigm case) → 制度的含意
- ② 結論先出し → 根拠列挙のみ
- ③ 賛成意見の単純な列挙
- ④ 起承転結の 4 部構成

第10章 (まとめ・宿題・5 分)

今日の核心整理と慶應法本番に向けた宿題

【本日の核心 5 か条】

- ① 法学エッセイは (A) 「前提 → 歴史 → 条件 → 区別 → 批判 → 反論 → 含意」 の 7 段論法。
- ② (B) Thoreau → Gandhi → King → Rawls の系譜を知っていれば本文の論理が予測できる。
- ③ (C) 4 条件と三項対比 (criminal / disobedient / revolutionary) は Rawls 系標準モデル。
- ④ NOT 設問は「(D) 古代の名前」(Plato, Aristotle 等) が罣の典型。
- ⑤ 主旨設問は(A) 制度の双方向的規律を選ぶ。「discarded / unconditional」は罣。

【宿題】

- ① 本講義の Q1-Q6 を見ないで本文だけ読み直し、自分で 6 問の設問を作成。
- ② 類題 5 問を解き直し、本文 7 段の各段にひと言タイトルを書き出す。
- ③ 過去問: 慶應義塾大学 法学部 英語 (過去 5 年分) から長文 1 題を選び、本日の手法で精読する。

【次回授業】 慶應法の英作文 (200 words 程度) — "Is civil disobedience ever justified in a democratic society?" の論理構成

【最後にひとこと】

慶應法の英語は(A) 語学試験であると同時に(B) 政治哲学リテラシー試験。本問の civil disobedience 論は、入学後に学ぶ憲法・法哲学・政治学の核心テーマ。